

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #12	CCRB Case #: 201809390	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/01/2018 8:00 AM	Location of Incident: 154 Port Richmond Avenue, 121st Precinct stationhouse	18 Mo. SOL 12/16/2020	Precinct: 121		
Date/Time CV Reported Sat, 11/03/2018 1:23 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/09/2018 11:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Tucker	06605	939613	121 PCT
2. POM Colin Corr	14754	951634	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Michelle Sanzone	04167	936024	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Tucker	Abuse: On November 1, 2018, at 154 Port Richmond Avenue, in Staten Island, Police Officer Daniel Tucker seized § 87(2)(b) s property.	A . Substantiated
§ 87(4-b) § 87(2)(g)		
C . POM Colin Corr	Abuse: On November 2, 2018, at the 121st Precinct stationhouse, Police Officer Colin Corr threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Colin Corr	Abuse: On November 2, 2018, at the 121st Precinct stationhouse, Police Officer Colin Corr threatened to arrest § 87(2)(b)	D . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 3, 2018, § 87(2)(b) submitted this complaint with the Internal Affairs Bureau (IAB) via telephone. On November 9, 2018, this case was received at the CCRB via IAB Log #2018-43580.

At approximately 8:00 a.m. on November 1, 2018, § 87(2)(b) was sitting in the front driver side seat of a § 87(2)(b) vehicle that was parked at 154 Port Richmond Avenue in Staten Island. Police Officer Daniel Tucker of the 121st Precinct parked behind the vehicle § 87(2)(b) was sitting in. He asked § 87(2)(b) for his license and registration. § 87(2)(b) told Police Officer Tucker that he did not have any identification, but provided him with the vehicle registration and insurance card. Approximately ten minutes later, Police Officer Tucker stated that he would be right back. Police Officer Tucker drove away with the vehicle registration and insurance card, both of which belonged to § 87(2)(b) (Allegation A: Property Seizure: Substantiated) § 87(2)(g), § 87(4-b) § 87(2)(b). Later that day, § 87(2)(b) and § 87(2)(b) went to the 121st Precinct stationhouse, but the documentation was not returned.

At approximately 8:00 a.m. on November 2, 2018, § 87(2)(b) went to the 121st Precinct stationhouse with § 87(2)(b) and § 87(2)(b) to pick up the vehicle registration and insurance card. After checking § 87(2)(b)'s identification, Police Officer Tucker arrested § 87(2)(b) for § 87(2)(b) § 87(2)(b) (Board Review 01) and issued him a summons for not having a distinctive license plate (Board Review 02). After § 87(2)(b) refused to leave the stationhouse, Police Officer Colin Corr threatened him and § 87(2)(b) with arrest (Allegation C: Threat of Arrest: Exonerated) (Allegation D: Threat of Arrest: Exonerated).

§ 87(2)(g), § 87(4-b)

No video footage of this incident was obtained; the 121st Precinct was not equipped with body-worn cameras. However, § 87(2)(b) provided the investigation with an audio recording of his conversation with officers at the 121st Precinct stationhouse on November 2, 2018 (Board Review 04).

Findings and Recommendations

Allegation A – Abuse of Authority: On November 1, 2018, at 154 Port Richmond Avenue in Staten Island, Police Officer Daniel Tucker seized § 87(2)(b)'s property.

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) provided a sworn statement on November 28, 2018 (Board Review 05). He stated that at approximately 8:00 a.m. on November 1, 2018, he was in a grey van at 154 Port Richmond Avenue. The van belonged to § 87(2)(b) of § 87(2)(b). He and other employees were scheduled to meet there to be taken to work together. The driver of the vehicle had left the vehicle to drop

her daughter off at school. The meter was expired, so § 87(2)(b) sat in the driver seat to prevent from being issued a parking ticket. While he waited for the driver to return, he observed a police vehicle drive past. Ultimately, it turned around and parked behind the vehicle he was in. Police Officer Tucker walked to the front driver side door and asked § 87(2)(b) to provide his identification, license, and registration. § 87(2)(b) told Police Officer Tucker that he did not have any identification. Police Officer Tucker asked him for the vehicle registration. § 87(2)(b) provided Police Officer Tucker with the vehicle insurance card and registration, both of which belonged to § 87(2)(b). Police Officer Tucker asked § 87(2)(b) who the car belonged to and what he was doing there. § 87(2)(b) replied that it was a company vehicle and he was waiting for the driver to arrive. Police Officer Tucker asked § 87(2)(b) for his name and date of birth. § 87(2)(b) replied that his name was § 87(2)(b) and that his birthday was § 87(2)(b). Police Officer Tucker asked § 87(2)(b) to call his employer to get the company vehicle. § 87(2)(b) called § 87(2)(b) who answered and said that he would be there in fifteen minutes. After ten to fifteen minutes, Police Officer Tucker pulled next to § 87(2)(b) and asked if § 87(2)(b) was coming. § 87(2)(b) replied that § 87(2)(b) was on his way. Police Officer Tucker told § 87(2)(b) that he would be right back. § 87(2)(b) asked about the insurance card and registration and Police Officer Tucker replied that he would be back. Police Officer Tucker then drove away. § 87(2)(b) arrived and he and § 87(2)(b) waited for Police Officer Tucker for approximately one hour. Police Officer Tucker did not return to 154 Port Richmond Avenue. § 87(2)(b) and § 87(2)(b) went directly to the 121st Precinct stationhouse, where they asked where the registration and insurance card was. They were instructed to return at 3:00 p.m. that day. When they returned, they were told that Police Officer Tucker had left for the day and that they should come back at 10:00 a.m. on November 2, 2018.

At approximately 8:00 a.m. on November 2, 2018, § 87(2)(b) and § 87(2)(b) went to the 121st Precinct stationhouse. After they spoke with Police Officer Corr and Police Officer Sanzone, Police Officer Tucker emerged from the back of the stationhouse. He asked § 87(2)(b) for his identification and pulled the insurance card and registration out of his bag. He went into the back of the stationhouse. Approximately one hour later, Police Officer Tucker emerged from the back of the stationhouse again. He provided § 87(2)(b) with his license and the insurance card and registration for the company vehicle. He told § 87(2)(b) that he was under arrest for § 87(2)(b). He arrested § 87(2)(b) and escorted him into the back of the stationhouse. Later, Police Officer Tucker told § 87(2)(b) that he had provided a false name as well.

§ 87(2)(b) provided a telephone statement on November 21, 2018 (Board Review 06), and a sworn statement on November 28, 2018 (Board Review 07). § 87(2)(g) He stated that at approximately 8:00 a.m. on November 1, 2018, he received a call from § 87(2)(b) who recounted what had happened at 154 Port Richmond Avenue and explained that Police Officer Tucker had left with the vehicle registration and insurance card and said he would be right back. § 87(2)(b) drove to 154 Port Richmond Avenue and waited with § 87(2)(b) and his own father, § 87(2)(b) for an hour and a half. At approximately 10:00 a.m. the three of them drove to the 121st Precinct stationhouse. The officers there were unable to retrieve the documents, and ultimately

instructed § 87(2)(b) and § 87(2)(b) to come back at 10:00 a.m. the following day. At approximately 7:00 a.m. on November 2, 2018, they returned to the stationhouse. Police Officer Tucker spoke with them and asked for identification from all of them. § 87(2)(b) said that he did not have identification. Police Officer Tucker took § 87(2)(b) and § 87(2)(b)'s I.D.s and returned with them approximately ten minutes later. Police Officer Tucker left and returned approximately an hour and a half later. He told § 87(2)(b) that he was under arrest and handed the vehicle insurance card and registration to § 87(2)(b). Police Officer Tucker escorted § 87(2)(b) to the back of the stationhouse. § 87(2)(b) did not see Police Officer Tucker again.

Police Officer Tucker was interviewed at the CCRB on February 28, 2019 (Board Review 08).

§ 87(2)(g)
He stated that on the morning of November 1, 2018, § 87(2)(b) did not have a driver license and instead provided him with the vehicle registration and insurance card. When § 87(2)(b) provided his name, Police Officer Tucker wrote it down on the back of the insurance card. Police Officer Tucker returned to his police vehicle to wait for § 87(2)(b) to arrive. After fifteen minutes of waiting, he observed another traffic infraction that he wanted to enforce. He went back to § 87(2)(b)'s vehicle and told him that he had to leave but would be back in fifteen minutes. He accidentally left without returning § 87(2)(b)'s vehicle registration and insurance card. They were misplaced in the center console of the police vehicle. The only reason he left § 87(2)(b)'s vehicle was because he observed the other infraction. The other vehicle stop ended up being a "non-crime corrected." When Police Officer Tucker returned to 154 Port Richmond Avenue, § 87(2)(b)'s vehicle was gone; he did not specify how much time elapsed. He continued his patrol, unknowingly keeping the insurance card and registration in his center console. Later that day, he received a call from the telephone/switchboard operator at the 121st Precinct stationhouse, who told him that he had § 87(2)(b)'s insurance card and registration. Police Officer Tucker told the telephone/switchboard operator to tell § 87(2)(b)'s boss to come to the 121st Precinct stationhouse. The telephone/switchboard operator told § 87(2)(b)'s boss to come in when Police Officer Tucker would be there and provided him with Police Officer Tucker's schedule. Police Officer Tucker told the telephone/switchboard operator that he would provide the documents when they met. The only reason he had the insurance card and registration was because he accidentally left them in his car. That evening, when he finished his tour, he exited his vehicle and removed all his belongings. He also removed the insurance card and registration. He knew that if § 87(2)(b)'s boss did not come in immediately, or if there was a scheduling conflict, he would vouch the paperwork for safekeeping to determine the true owner, and it would have been at the command for pickup at any time. The only reason the insurance card and registration were not vouchered was because § 87(2)(b)'s boss was scheduled to come in the following day. Additionally, he worked overtime on November 1, 2018.

It is undisputed that Police Officer Tucker seized the registration and insurance card that § 87(2)(b) provided to him.

As per New York Vehicle and Traffic Law §319.3 (Board Review 09), every person who operates a vehicle registered in New York State shall, when required by the commissioner's regulations, produce an insurance identification card when requested by any peace officer. The

failure to so produce such a card shall be presumptive evidence that such person was operating the vehicle without having in effect financial security required.

As per New York Vehicle and Traffic Law §401.4 (Board Review 10), any police officer may request that the operator of any motor vehicle produce for inspection the certificate of registration for such vehicle. The failure to produce such a certificate may be presumptive evidence of operating a motor vehicle which is not registered as required.

As per Patrol Guide Procedure 218-01 (Board Review 11), upon taking property into police custody, officers must enter the circumstances and description of the property into the activity log, notify the desk officer, prepare a Property Clerk Invoice Worksheet, make sure that all property is properly packaged and identified by invoice number, and deliver the property to the desk officer, who is to safeguard it accordingly.

According to the Fourth Amendment of the United States Constitution, USCS Const. Amend. 4 (Board Review 12), the right of the people to be secure in their persons, papers, and effects against unreasonable searches and seizures shall not be violated.

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED] it is recommended both that **Allegation A** be **Substantiated** for the seizure of the documents § 87(4-b), § 87(2)(g) [REDACTED]

Allegation C – Abuse of Authority: On November 2, 2018, at the 121st Precinct Stationhouse, Police Officer Colin Corr threatened § 87(2)(b) with arrest.

Allegation D – Abuse of Authority: On November 2, 2018, at the 121st Precinct Stationhouse, Police Officer Colin Corr threatened § 87(2)(b) with arrest.

§ 87(2)(b) stated that after § 87(2)(b) was arrested and taken into the back of the stationhouse, he began to audio record his conversation with officers. During that time, officers yelled at him and § 87(2)(b) to leave.

The audio recording (Board Review 04) captures the moment Police Officer Tucker informs § 87(2)(b) that he is being arrested. § 87(2)(b) and § 87(2)(b) state that § 87(2)(b) should not be arrested. After they verbally protest the arrest of § 87(2)(b) for several minutes, a voice, later identified as that of Police Officer Corr, says, “You have no official business here. You gotta leave or be placed under arrest.”

Police Officer Corr was interviewed at the CCRB on March 27, 2019 (Board Review 13). During his interview, he was presented with the audio record § 87(2)(b) generated during this portion of the incident. Police Officer Corr stated that he was the officer who told § 87(2)(b) that if he did not leave, he would be placed under arrest. Police Officer Corr made this statement because he and § 87(2)(b) had no official business in the stationhouse and were trespassing.

According to NYPD Patrol Guide Procedure 208-01 (Board Review 16), an officer may conduct an arrest without a warrant for an offense when they have reasonable cause to believe an offense was committed in their presence.

§ 87(2)(g)
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§ 87(2)(g) It is recommended that **Allegations C and D** be **Exonerated**.

§ 87(2)(g), § 87(4-b)
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§ 87(2)(g), § 87(4-b)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).
- Police Officer Tucker has been a member-of-service for fourteen years and has been a subject of five CCRB complaint and five allegations, none of which were substantiated.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation because of § 87(2)(b)'s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- According to the New York City Comptroller's Office, as of May 16, 2019, no Notice of Claim has been filed in this case (Board Review 24).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date